

1 ENGROSSED HOUSE
2 BILL NO. 3298

By: Timmons, Schreiber, Osburn,
and McCane of the House

3 and

4 Rader and Boren of the
5 Senate

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7
8 An Act relating to civil procedure; enacting the
9 Uniform Judicial Interview of Children Act; defining
10 terms; providing scope of act; permitting judicial
11 officer to conduct judicial interview under certain
12 circumstances; permitting certain parties to request
13 judicial interview; providing considerations for the
14 judicial officer; requiring that a judicial officer
15 who conducts a judicial interview have training in
16 interviewing a child; providing judicial interview
17 procedure; directing the judicial officer to grant
18 access to interview record under certain
19 circumstances; directing a court to consider
20 uniformity in applying and construing act; specifying
21 interviews this act shall apply to; providing for
22 codification; and providing an effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 3401 of Title 12, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Uniform
Judicial Interview of Children Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3402 of Title 12, unless there is created a duplication in numbering, reads as follows:

In the Uniform Judicial Interview of Children Act:

1. "Child" means an unemancipated individual who is under eighteen (18) years of age and includes an adult who, because of physical or mental incapacity, is the subject of a covered proceeding;

2. "Child's attorney" means an attorney who provides legal representation for a child in a covered proceeding;

3. "Court" means a tribunal authorized under other law to adjudicate a covered proceeding;

4. "Covered proceeding" means:

a. a civil judicial proceeding relating to a child to determine any of the following:

- (1) legal or physical custody,
- (2) parenting time or visitation,
- (3) relocation,
- (4) nonparent custody or visitation,
- (5) private adoption,
- (6) guardianship or conservatorship, or
- (7) another matter involving custodial responsibility, and

b. a proceeding under the International Child Abduction Remedies Act, 22 U.S.C. Section 9001, et seq., as amended;

5. "Guardian ad litem" means an individual who is appointed by the court to represent a child's best interest in a covered proceeding;

6. "Interview record" means a record of a judicial interview;

7. "Judicial interview" means communication not under oath or affirmation between a child and a judicial officer in a covered proceeding through which the judicial officer elicits the child's views;

8. "Judicial officer" means a judge or other individual who is authorized by other law to:

a. conduct a covered proceeding and make or recommend a final decision in the proceeding, and

b. conduct a judicial interview;

9. "Party" means a litigant with a direct interest subject to adjudication in the covered proceeding and does not include a child who is the subject of the proceeding;

10. "Person" means an individual, estate, business or nonprofit entity, public corporation, government or governmental subdivision, agency, or instrumentality, or other legal entity;

11. "Record" means information:

a. inscribed on a tangible medium, or

b. stored in an electronic or other medium and
retrievable in perceivable form;

12. "State" means a state of the United States, the District of Columbia, Puerto Rico, the United States Virgin Islands, or any other territory or possession subject to the jurisdiction of the United States. The term includes a federally recognized Indian tribe;

13. "Testimony" means evidence provided by a witness under oath or affirmation;

14. "Views" means wishes, preferences, or perspectives. The term includes a child's objection to being returned in a proceeding under the International Child Abduction Remedies Act, 22 U.S.C. Section 9001, et seq., as amended.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3403 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. Except as provided in subsection B of this section, this act shall apply to a covered proceeding in which other law permits a judicial officer to conduct a judicial interview of a child who is the subject of the proceeding.

B. This act shall not apply to:

1. A judicial interview conducted in a proceeding under the Oklahoma Children's Code or the Oklahoma Juvenile Code;

2. Testimony by a child; or

1 3. An interview conducted by a person other than a judicial
2 officer.

3 SECTION 4. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 3404 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Unless prohibited by other law, the child, child's attorney,
7 guardian ad litem, or a party may request a judicial interview. The
8 decision to conduct a judicial interview is within the judicial
9 officer's discretion and may be at the judicial officer's own
10 initiative.

11 B. A judicial officer may conduct a judicial interview if the
12 judicial officer determines the judicial interview is in the child's
13 best interest and the requirements of other law are met.

14 C. Except as provided by other law, in deciding whether a
15 judicial interview is in the child's best interest, the judicial
16 officer shall consider the child's expressed desire to communicate
17 or not communicate with the judicial officer and, to the extent
18 applicable and readily ascertainable:

19 1. The likelihood that the interview will assist the judicial
20 officer in adjudicating the covered proceeding;

21 2. The child's age, maturity, and capacity to formulate and
22 communicate views to the judicial officer;

23 3. The likely benefit to the child from the interview;

1 4. The potential harm to the child from the interview,
2 including embarrassment, harassment, retaliation, and breach of a
3 relationship, and the judicial officer's ability to mitigate harm
4 while still eliciting the child's views;

5 5. The availability and suitability of other processes to
6 elicit the child's views;

7 6. The likelihood that conducting the interview may facilitate
8 recognition or enforcement in another state or foreign court of the
9 decision in the covered proceeding; and

10 7. Any other relevant factor.

11 D. A judicial officer who conducts a judicial interview shall
12 have training in interviewing a child in accordance with judicial
13 standards established under other law of this state.

14 SECTION 5. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 3405 of Title 12, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The judicial officer shall permit a party, the child's
18 attorney, and the guardian ad litem to propose questions in a record
19 for the judicial interview. The judicial officer shall determine
20 the questions asked of the child.

21 B. The judicial officer shall require an interview record to be
22 made.

23 C. The judicial officer shall permit the child's attorney and
24 guardian ad litem to attend the interview in person.

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2 D. The judicial officer may not permit a party or the party's
3 attorney to attend the interview.

4 E. If all parties agree, the parties may stipulate on the
5 record that they waive access to the interview record. A
6 stipulation is not valid unless approved by a judicial officer. The
7 judicial officer may not approve a stipulation unless each party
8 stipulates that the party waives any right to access the interview
9 record, to be informed of communication by the child during the
10 interview, and to respond to the child's communication. Unless
11 otherwise stated in the stipulation, a stipulation under this
12 section precludes access to the interview record by the parties in a
13 future covered proceeding, including an appeal.

14 F. Before starting the interview, the judicial officer shall
15 explain to the child in an age-appropriate manner information about
16 the interview, including:

17 1. That the child is not required to answer the judicial
18 officer's questions;

19 2. That the child's views will be considered but the judicial
20 officer is the decisionmaker;

21 3. That an interview record will be made;

22 4. Whether any individual will be observing or listening to
23 the interview in real time;
24

1 5. Whether the interview record will be provided to the
2 parties; and

3 6. That the judicial officer under other law of this state may
4 be required in some circumstances to share with another person the
5 child's communication.

6 SECTION 6. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 3406 of Title 12, unless there
8 is created a duplication in numbering, reads as follows:

9 A. Unless otherwise prohibited by a stipulation approved
10 pursuant to subsection E of Section 5 of this act and except as
11 provided under subsection B of this section, on request of a party
12 and after payment of required costs, the judicial officer shall
13 grant access to the interview record if a party appeals the final
14 decision in the covered proceeding.

15 B. Unless otherwise prohibited by a stipulation approved
16 pursuant to subsection E of Section 5 of this act, if the child
17 makes a factual allegation in the judicial interview, other than
18 communication of the child's views, that is or may be contested and
19 is potentially dispositive in the covered proceeding, the judicial
20 officer shall disclose the allegation to the parties and provide
21 them an opportunity to submit evidence and legal argument in
22 response.

1 C. The right of the child, the child's attorney, and the
2 guardian ad litem to access the interview record and participate in
3 the covered proceeding is governed by other law.

4 D. The judicial officer shall determine appropriate
5 restrictions on the disclosure of the contents of the interview and
6 the interview record to nonparties during the covered proceeding and
7 after its conclusion.

8 E. On a finding required under Section 24A.29 of Title 51 of
9 the Oklahoma Statutes, the court shall seal the interview record
10 from public access.

11 F. The decision whether to permit the child to provide
12 testimony in a covered proceeding is governed by other law.

13 SECTION 7. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 3407 of Title 12, unless there
15 is created a duplication in numbering, reads as follows:

16 In applying and construing this uniform act, a court shall
17 consider the promotion of uniformity of the law among states that
18 enact it.

19 SECTION 8. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 3408 of Title 12, unless there
21 is created a duplication in numbering, reads as follows:

22 This act shall apply to a judicial interview requested or
23 initiated on or after the effective date of this act.

24 SECTION 9. This act shall become effective November 1, 2026.

1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate